

22CHCV01497 22CHCV01497

County: los-angeles

Division: Civil Law and Motion

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(1) CROSS-DEFENDANT CARY SPYROS MALLAS'S MOTION FOR
DETERMINATION OF GOOD FAITH SETTLEMENT AND FOR DISMISSAL OF CROSS-COMPLAINT

(2) DEFENDANT/CROSS-COMPLAINANT CITY OF LOS ANGELES'S
MOTION TO CONTEST CROSS-DEFENDANT CARY SPYROS MALLAS'S APPLICATION FOR
DETERMINATION OF GOOD FAITH SETTLEMENT

Motions filed on April 9, 2026 and June 24, 2026.

MOVING PARTY: Cary Spyros Mallas (Mallas) and City of Los
Angeles (City)

RESPONDING PARTY: City and Mallas, respectively

NOTICE: OK.

RELIEF REQUESTED: Mallas seeks a determination that his
September 2022 settlement with Plaintiff Kimberly Yvonne Scott (Plaintiff) was
made in good faith under Code of Civil Procedure section 877.6 and dismissal of
the City's cross-complaint. The City contests the determination and
alternatively requests a continuance for additional discovery.

RULING: Mallas's motion is denied for lack of jurisdiction under Code of Civil Procedure section 1008. The City's motion to contest and alternative request for a continuance are denied as moot.

BACKGROUND

On December 27, 2022, Plaintiff filed the Complaint against the City.

On February 25, 2025, the City filed a cross-complaint against Mallas asserting indemnification, contribution, apportionment of fault, and declaratory relief.

On May 7, 2025, Mallas filed an application for determination of good faith settlement concerning his September 2022 settlement with Plaintiff. On June 2, 2025, the City filed a motion to contest the application. On October 6, 2025, the Court granted the City's motion to contest and denied Mallas's application. (10/6/25 Minute Order at pp. 1-2, 9-10.)

On January 20, 2026, the case was reassigned to Department F46. (1/20/26 Minute Order.)

On April 9, 2026, Mallas filed the present Motion for Determination of Good Faith Settlement and for Dismissal of Cross-Complaint, supported by declarations and exhibits concerning the incident, settlement, insurance, and his financial condition.

On June 24, 2026, the City filed its Motion to Contest and the declaration of Robert K. Dixon with exhibits.

On August 20, 2026, Mallas filed a reply in support of his motion and opposition to the City's motion, together with a supplemental declaration and additional evidence.

DISCUSSION

Code of Civil Procedure section 1008 governs situations like the present where a motion has been denied and the same relief is thereafter sought again. It provides two options. Subdivision (a) governs motions for reconsideration. A motion for reconsideration must be made within 10 days after

service of written notice of entry of the order, to the same judge or court that made the order, based on new or different facts, circumstances, or law, and supported by an affidavit containing the information specified in the statute. (Code Civ. Proc., § 1008, subd. (a).)

Subdivision (b) governs renewed motions. It provides that a party who originally made an application that was denied in whole or in part may make a subsequent application for the same order “upon new or different facts, circumstances, or law.” The application must be accompanied by an affidavit stating what application was made before, when and to what judge, what order or decision was made, and what new or different facts, circumstances, or law are claimed to be shown. (Code Civ. Proc., § 1008, subd. (b).)

Here, Mallas previously sought a determination that the same September 2022 settlement was made in good faith. On October 6, 2025, the Court denied that application because Mallas had not presented substantial evidence concerning his proportionate liability or financial condition. (10/6/25 Minute Order at pp. 9-10.) The present motion again seeks a determination that the same settlement was made in good faith and expressly characterizes itself as a “renewed motion” intended to cure the evidentiary deficiencies identified in the prior ruling. (Motion at pp. 2-3.)

To the extent the present motion could be treated as a motion for reconsideration under subdivision (a), it does not establish compliance with that subdivision. It was filed approximately six months after the prior ruling, is not presented as a motion for reconsideration, does not establish compliance with subdivision (a)’s 10-day requirement, and was not made before the judge who entered the prior ruling.

The motion does not comply with subdivision (b) either.

Although Mallas now presents additional evidence concerning the accident and his financial condition, the supporting declarations do not state what application was previously made, when and to what judge it was made, what order or decision was entered, and what new or different facts, circumstances, or law are claimed to be shown. (Atanous Decl. ¶¶ 1-9; Mallas Incident Decl. ¶¶ 2-10; Mallas Financial Decl. ¶¶ 2-11.)

Mallas also does not satisfactorily explain why evidence concerning matters already within his knowledge, including his own observations

of the accident and his then-existing financial circumstances, was not presented with the prior application. A renewed motion requires diligence and a satisfactory explanation for failing to present the new or different information earlier. (Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 833.) The information must be such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

Mallas characterizes the October 6, 2025 denial as without prejudice. The October 6, 2025 minute order does not contain that qualification, nor does the record before the Court contain any order authorizing Mallas to renew the application upon submission of additional evidence. The present motion again seeks the same order concerning the same settlement and is therefore a renewed application subject to section 1008, subdivision (b).

Section 1008, subdivision (e), explicitly provides that the section "specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions" and that no application for renewal of a previous motion may be considered unless made according to section 1008. The court acts in excess of its jurisdiction when it grants reconsideration that does not comply with section 1008. (Gilbert v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.)

Mallas has not complied with section 1008. The motion is denied on the basis that the Court lacks jurisdiction to consider the renewed motion. Because the Court lacks jurisdiction to consider the renewed motion, the Court does not determine whether the expanded evidentiary record would otherwise satisfy section 877.6 and the Tech-Bilt factors.

CONCLUSION

Mallas's Motion for Determination of Good Faith Settlement and for Dismissal of Cross-Complaint is denied for lack of jurisdiction. The City's Motion to Contest and alternative request for a continuance are denied as moot.